

		Defendant shall give notice. Case Management Conference CMC and OSC for service on all remaining defendants 12-14-26 at 9:00 a.m.
12	Soule vs. Ascensus LLC 2025-01535494	Motion to Deem Facts Admitted Plaintiff Luke Soule’s Motion for Order Deeming Requests for Admission Admitted is denied. The Court grants Plaintiff’s request for judicial notice of the motion to strike filed on 4/6/26. If a party fails to serve a timely response to requests for admission, the requesting may move for an order that the requests be deemed admitted. (Code Civ. Proc. § 2033.280, subd. (b).) The court “shall” make this order unless, before the hearing, a proposed response in substantial compliance with CCP section 2033.220 has been served. (<i>St. Mary v. Superior Court</i> (2014) 223 Cal.App.4th 762, 776 [service of substantially compliant responses prior to the hearing on the “deemed admitted” motion will defeat a propounding party’s attempt to have the requests deemed admitted].) The moving party need not meet and confer before bringing this motion. (<i>Id.</i> at pp. 777-778.) The Court finds Plaintiff is not entitled to relief under CCP section 2033.280, because Defendant timely served its response on 4/7/26. (Soule Decl. at ¶ 7; Peterson Decl. at ¶ 6, Exh. B.) A “response” to a request for admission includes: an answer, an objection, or a partial objection and answer. (Code Civ. Proc., §§ 2033.210, subd. (b), 2033.230, subd. (a).) Although Plaintiff complains that Defendant’s response consists “entirely of identical boilerplate objections — without a single admission, denial, or statement of insufficient knowledge,” this is not a basis for deeming the matters in the requests admitted. (Code Civ. Proc., § 2033.280, subd. (b).) Rather, the appropriate motion is a motion to compel a <i>further</i> response under CCP section 2033.290. Plaintiff’s reliance on <i>Appleton</i> is misplaced. <i>Appleton</i> is not applicable, because it merely stands for the holding that the actual answers must be verified, and unverified responses may result in the imposition of sanctions. (<i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 635–636.) However, when a response consists of only

		objections, a signature from the attorney may be required, but not a verification from the client. (Code Civ. Proc., § 2033.240, subd. (a).) Thus, a failure to provide a verification for objection-only responses does not challenge the timeliness of the responses served, or result in a waiver of objections. The Court notes that Plaintiff also cites to CCP section 2033.290 in his notice of motion. However, the notice of motion does not otherwise request relief in the form of an order compelling further responses. Rather, a request for “alternative” relief is buried in a single sentence on page 18 of the memorandum. The Court finds this notice was insufficient. But, even if the Court were to overlook the notice defect, the alternative request would still be denied because Plaintiff did not comply with the meet and confer or separate statement required by the Code for a motion to compel further response. (Code Civ. Proc., § 2033.290, subd. (b)(1) [meet and confer requirement]; Cal. R. Ct. Rule 3.1345(a)(1) [separate statement requirement].) The fact that Plaintiff is self-represented does not excuse his compliance with the Code. (<i>Harding v. Collazo</i> (1986) 177 Cal.App.3d 1044, 1055; see also <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284.) In prevailing on its opposition to this motion, Defendant Ascensus, LLC is awarded \$2,700 in reasonable monetary sanctions against Plaintiff Luke Soule. (Code Civ. Proc. § 2033.290, subd. (d).) The sanctions are payable to Defendant’s counsel, Thompson Hine LLP, within 30 days. Defendant shall give notice of the ruling. Case Management Conference – continued to 9/14/26 @ 1:30 p.m.
13	Wells Fargo Bank, National Association vs. Gallegos 2009-00309425	Motion to Vacate Order Granting Summary Judgment Defendant Roberto F. Gallegos’ (“Defendant”) Motion To Vacate Order Granting Summary Judgment is denied. Defendant moves, under Code of Civil Procedure (the “Code”) sections 473(b) and 2033.300, to vacate the Order granting Plaintiff Wells Fargo Bank, National Association’s (“Plaintiff”) motion for summary judgment, which was entered on 3/16/26 (ROA 191). Plaintiff filed its Complaint in this action on 10/7/09. (ROA 1.) A default judgment was entered on 4/19/10. (ROA 16.) Defendant filed a motion to vacate default judgment on 2/23/24. (ROA 44.) The Court granted Defendant’s motion on 5/30/24, after finding deficiencies in